

25STCV17185 25STCV17185

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV17185 Hearing Date: August 11, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

11, 2026 TRIAL DATE: November 8, 2027

CASE: Bernard Middleton, et al. v. Karlene Requena, et al.

CASE NO.: 25STCV17185

PLAINTIFFS

AND CROSS-DEFENDANTS BERNARD MIDDLETON AND CLAUDIA

MIDDLETON'S

MOTION TO COMPEL

MOVING PARTY: Plaintiffs/Cross-Defendants

Bernard Middleton and Claudia Middleton

RESPONDING PARTY: Defendant

Karlene Requena, in pro per

I. INTRODUCTION

On March 20, 2026, Plaintiffs and Cross-Defendants, Bernard Middleton and Claudia Middleton, filed this motion to compel Defendant, Karlene Requena, to provide further responses to Plaintiffs' first set of Requests for Production of Documents, Form Interrogatories, and

Special Interrogatories. Plaintiffs do not request sanctions.

On July 29, 2026, Defendant filed an opposition.

On August 4, 2026, Plaintiffs filed a reply.

II. LEGAL STANDARD

Under Code of Civil Procedure sections 2030.300 and 2031.310, parties may move for a further response to interrogatories and requests for production of documents where an answer to the discovery request is evasive or incomplete or where an objection is without merit or too general.¿¿¿

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Notice of the motion must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response.¿ (Code Civ. Proc., §§ 2030.300(c); 2031.310(c).)¿¿¿

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Finally, California Rules of Court, rule 3.1345(a)(3) requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses.¿

III. DISCUSSION

A. Request for Production of Documents (“RPD”)

Plaintiffs seek a further response to RPD Nos. 2, 3, 4, 8, 10, 13, and 14 on the grounds that Plaintiffs “have good reason to believe that [these responses are] ‘inadequate, evasive, or incomplete.’” Plaintiffs go on to cite portions of Defendant’s verified answer to their verified complaint and/or responses from other

witnesses to Plaintiffs' written discovery to demonstrate the purported untruthfulness of Defendant's responses. However, this is not grounds to compel a further response. Defendant's responses are code compliant. Plaintiffs must seek other means to test the veracity of Defendant's responses. Further responses are not warranted.

B. Form

Interrogatories ("FROG")

Plaintiffs seek further responses to FROG Nos. 12.1 and

15.1 because Defendant provided evasive or incomplete responses. The court agrees. Defendant's responses are bereft of facts and/or

conflict with Defendant's other discovery responses. Further responses are warranted.

C. Special

Interrogatories ("SROG")

Plaintiffs seek further responses to SROG Nos. 9 and 11

because Defendant provided evasive responses.

The court agrees. Defendant's

responses are irrelevant to the call of the SROG. Further responses are warranted.

IV. CONCLUSION

The motion to compel is GRANTED IN PART. Defendant Karlene Requena is ordered to provide further responses to Plaintiffs' FROG Nos. 12.1 and 15.1 and SROG Nos. 9 and 11 within 15 days of this order.

The motion is DENIED as to RPD Nos. 2, 3, 4, 8, 10, 13, and 14.

Plaintiffs are ordered to give notice.

cc

Dated: August 11, 2026

Brock T. Hammond

Judge of the Superior Court